

A Sacred Conception of Justice in Imam ‘Alī’s Letter to Mālik al-Ashtar

CONTEMPORARY ETHICS AND THE *IḤSĀNĪ* TRADITION

The discussion of justice in this chapter is not intended simply to be an exercise in theoretical speculation on the meaning of justice as expressed in the letter of Imam ‘Alī to Mālik al-Ashtar fourteen centuries ago; rather, the aim is, first and foremost, to situate the discussion of justice in relation to the concept and the reality of the sacred. For, on one hand, the principle of justice possesses a sacred or spiritual dimension, so often overlooked in contemporary discourses; and on the other, a sensitive appreciation of the meaning of the sacred results in a deeper understanding of the roots of justice within the divine nature itself, and a more profound awareness of the necessity of justice in the world and in the soul. To state the basic argument of this essay: In Imam ‘Alī’s worldview, the ethical orientation towards justice is immeasurably deepened insofar as it is consciously linked to the spiritual precepts of the Islamic faith. The spirit underlying moral rules and ethical values is strengthened by a commitment to transcendent principles, even though—or precisely because—these principles surpass the realm of action within which those rules and precepts operate. Contemplation and action are seen in this perspective as complementary, not contradictory, as this complementarity goes to the very heart of the Islamic message of *tawḥīd*, of integrating oneness, which is embodied with dazzling evidence in the life of the Imam, as it is in the life of the Prophet. This harmony between the two principles—contemplation and action, being and doing, theory and practice, ideal and reality—pervades the remarkable document which is the subject of this essay.

Secondly, the reflections offered here are intended to be viewed against the background of contemporary ethical discourse and might be seen as a humble contribution, from an Islamic perspective, to the debates on virtue and ethics taking place in scholarly circles. In particular, the essay should be seen in the light of one of the most serious and far-reaching critiques of modern and postmodern notions of virtue in general and justice in particular, that of Alasdair MacIntyre.

Simply put, the thrust of his critique is that, for several centuries, ethical discourse in Western society has drifted far from its moorings in absolute values. He argues compellingly that debates about morality and ethics, together with their philosophical foundations, are no longer grounded in conceptions of ‘the good life’ or of ‘the Good’ as such. MacIntyre holds that, as a consequence, various shades of relativism, nihilism, utilitarianism and opportunism have emerged, *de facto*, as the shifting bases upon which ethical values are formulated, if they are formulated at all. The practice of virtue on an *ad hoc* basis is not virtue properly speaking—it is a series of pragmatic adaptations to changing circumstances in the absence of any principle of virtue as such. ‘We are looking,’ writes MacIntyre, ‘for a conception of *the* good which will enable us to order other goods, for a conception of *the* good which will enable us to extend our understanding of the purpose and content of the virtues, for a conception of *the* good which will enable us to understand the place of integrity and consistency in life ...’¹

It is at this level, in particular, that the insights of Imam ‘Alī and other sages of the Islamic tradition have a particular relevance. Not only does MacIntyre’s proffered solution to the crisis—the reformulation of an Aristotelian conception of ethics, based on a Thomistic worldview—share much in fact with the Islamic tradition of ethical discourse (*akhlāq*);² one can also argue that a careful evaluation of the legacy of the Imam yields much more than a merely theoretical approach to the question of justice, and this in two respects. First, the Imam was himself a paragon of justice and, thus, a living embodiment of this and other fundamental virtues. In his life one observes a perfect, indeed, unflinching adherence to this cardinal virtue. Although in this work we are not entering into many details pertaining to his life and its lessons, we will have occasion to refer to certain incidents and events which help illustrate this point. Secondly, and more importantly for our purposes, in the discourses, letters and sayings attributed to Imam ‘Alī, we are given a rich source of reflection upon the dynamic spirituality which lies at the root of a life of virtue. One is afforded a glimpse into a way of life totally governed by the sacred, one in which a desire for the ‘good life’ emerges as the fruit of an irresistible attraction towards the Good as such, which is identical to the absolutely Real, *al-Ḥaqq*.

In other words, one is ethically inspired by ‘the Good’ in the very measure of one’s existential orientation to the Real. If moral rules are grounded in ethical perspectives, and if these perspectives are rooted in a conception of the ‘good life’, this conception of the Good is itself derived from the moral agent’s basic understanding of the meaning of life itself. Aryn B. Sajoo, in a recent thoughtful work on Muslim ethics, distinguishes carefully between ethics and morals. He states that ethical discourse is concerned more with conceptions of ‘the good’, while morals pertain more specifically to rules concerning right and wrong. ‘Certainly’, he continues, ‘the concepts overlap substantially in theory and practice; but it is well to bear in mind the more encompassing sense of reality that typifies ethics.’³ Placing ethics in the wider framework of spiritual virtue—in the sense of *iḥsān*, as we shall see shortly—expands even further the compass of both ethics and morality, lending the two types of discourse a dimension of existential depth, grounding them in a more organic and all-encompassing framework. Abstract questions of right and wrong come to be rooted in the more definitive principle that emerges in response to the question: what is reality?

One should bear in mind here the discussion in the previous chapter on the deeper meanings of divine unity. In the Imam’s spiritual vision of *tawḥīd*, one perceives—according to one’s capacity—an ultimate reality which not only ‘has no second’ but which also has no moral ‘opposite’. For the goodness that is proper to God is not the moral opposite of evil, rather, it is situated on a different plane altogether, that of *al-Ḥaqq*, the absolutely Real, the only ‘opposite’ to which is unreality or nothingness. Thus, while goodness is at one with the pure positivity of the Absolute, evil derives solely from a negative capacity to negate the Real, the Good. In other words, goodness is identified in its essence with the Creator, while evil is a modality of the created. This is strongly implied in the Qur’ānic verse which tells the believer to seek refuge in God from ‘the evil of that which He created’ (113: 2). This verse is often mistranslated as ‘from the evil which He created’, which is wrong both theologically and lexically. The expression ‘*min sharri mā khalaqa*’ refers clearly to the evil *deriving from* creation and not the creation as such. In theological terms, God creates morally free agents and it is they who are the authors of the evil in creation. God may be said to ‘create’ all actions, only in the metaphysical sense that He is the source of all being, and thus of all modalities within being, and actions constitute one such modality; however, God cannot be said to have created evil as such, only the conditions within which evil emerges. Evil is thus the negation of the Good, which is at one with the Real; as such, evil has no ultimate ontological principle.⁴

The verse, then, can be understood to mean seeking refuge in the Real from the unreal, there being no common measure, in terms of being, between goodness and evil. Goodness is opposable only by the *appearance* of evil, an appearance which is grasped as an illusion by the ‘eye of the heart’, that eye which truly ‘sees’ God through ‘the verities of faith’. This vision of the relative reality of evil, far from engendering indifference towards it, greatly empowers the spiritual resolve to overcome it, for the moral effort to be good is intensified in the measure of the conviction of one’s accountability to that goodness. This conviction, in turn, is transported ‘inwards’ from the mind to the heart by the certainty that goodness is ‘more real’ than evil; and this certainty itself is nourished by the spiritual vision of the good as the Real. So, the perception of the radical incommensurability between good and evil does not lead to indifference in the face of evil, but to a more existentially compelling orientation to the good.

In the Imam’s perspective, the notions of ‘right’ and ‘rightful due’ which are comprised within the meaning of *ḥaqq* are infused with an aura of absoluteness; the moral notions of rectitude and propriety are expressions of a principle that transcends morality, a principle which pertains to ultimate reality. One’s commitment to fulfilling one’s obligations—to giving what is rightfully due to all—becomes infused, likewise, with a strong ‘dose’ of reality; the resolution to be just is rendered more absolute by the very quality of absoluteness proper to the Real.

This duty to give what is due to each and every being relates to the most explicit definition of justice⁵ given by the Imam: ‘Justice puts everything in its right place.’⁶ One is ‘just’ insofar as one gives everything its proper due, renders the *ḥaqq* due to each person, indeed to each and every thing in existence; and the ability to be ‘just’ in this demanding and universal manner is enhanced in the measure that one is attuned to *al-ḥaqq*, the Real. As should be clear from the discussion in the previous chapter, this spiritual conception of virtue not only encompasses one’s duty to all, but also engages all that one is. One has to *be* good before one *does* good; and the only way ‘to be’, is to be at one with the Real, that which alone ‘is’.

The Imam’s comment on justice evokes the more famous definition of Plato: ‘...we have laid down, as a universal principle, that everyone ought to perform the one function in the community for which his nature best suited him ... that principle, or some form of it, is justice.’⁷ There are, indeed many remarkable parallels between Plato’s *Republic* and the letter of the Imam to Malik al-Ashtar. In this chapter we shall occasionally refer to some of the more obvious correspondences, and note, at the end of the chapter, the way in which the Imam’s explicit spirituality sheds light on what is left implicit in Plato’s philosophy, namely, the manner in which one can attain the vision of the Real, which Plato refers to as ‘gazing upon the Good’. It is this contemplation of the Good as such that functions as the source of one’s ability to act ethically, on all levels, for this vision allows one to take the Good ‘as a pattern for the right ordering of the state and of the individual’.⁸

The influence of Platonic and Neoplatonic conceptions of justice on the formulation of ethical discourse in Islam has been amply attested in the sources.⁹ Within this discourse, justice is not so much seen as one among several virtues, but as the perfection or sum of the other virtues, especially the three principal Platonic virtues of temperance, courage and wisdom. These must characterize, respectively, the concupiscent, the irascible and the rational dimensions of the soul. When all the dimensions of the soul, ‘filled out’ by their respective virtues, are in their proper place, then the soul can be qualified as ‘just’.¹⁰ However, what has not been given sufficient attention in the sources is the degree to which there is a spiritual correspondence between Plato’s chief means of arriving at the vision of the Good, *anamnesis*, and the cardinal role of *dhikr* in Islam, both terms being translatable by the English word ‘remembrance’. This underlines the importance of this remembrance, this recollection of ultimate reality, of immutable principles, at different levels of application.¹¹ It is not a question of learning things anew but of recollecting principles, ones which are inherent in the very substance of the intellect, and by which all things can be understood: principles that are ultimately rooted in the Sovereign Good itself.

Such remembrance should be regarded as the cognitive and philosophical foundation of ethical thought; and the fact that its importance has been ignored is symptomatic of the sundering of ethics and spirituality in modern discourse, treating each discipline as if it were hermetically sealed from the other. Whereas ethics is still taken seriously as a branch of philosophy and as a discipline in its own right, spirituality is all too often regarded as irrelevant to serious scholarly inquiry and relegated to the realm of the imaginary, the woolly and the mythological. This marginalization of spirituality from the field of putatively serious discourse is closely related to the reductive view of knowledge that has increasingly characterized Western thought from the Renaissance onwards, a reduction that goes hand in hand with an emasculation of the sacred dimension of life.¹²

In the Islamic tradition of discourse, the realms of ethics and spirituality are intimately connected. Nowhere is this more apparent than in the Sufi tradition, which is being increasingly and most aptly referred to as the *ih̥sānī* tradition—understanding the word *ih̥sān* (excellence, virtue, goodness) in the sense imparted to it by the Prophet in a tradition of central importance as regards the three fundamental aspects of the Islamic way. It is known as ‘the *ḥadīth* of Gabriel’, for the questioner of the Prophet in this exchange, unbeknown to the Companions who were present, was the angel Gabriel, in human guise.

‘O Muḥammad, tell me about submission (*al-Islām*)’, the stranger asked. The Prophet replied, ‘*Al-Islām* is to testify that there is no god but God and Muḥammad is the messenger of God, to perform the prayers, to pay the poor-due (*al-zakat*), to fast in Ramaḍān, and to make the pilgrimage to the House if you are able to do so.’

The narration continues:

‘He [Gabriel] said, ‘You have spoken truly’, and we [the Companions] were amazed at his asking him and saying that he had spoken truly. He said, ‘Then tell me about faith (*al-imān*).’ He [the Prophet] said, ‘It is to believe in God, His angels, His books, His messengers, and the Last Day, and to believe in divine destiny, both the good and the evil thereof.’ He said, ‘You have spoken truly.’ He said, ‘Then tell me about virtue (*al-ih̥sān*).’ He said, ‘It is to worship God as though you see Him, and if you see Him not, yet truly He sees you.’¹³

The word *ih̥sān* can also be literally translated as ‘doing what is beautiful’, the root of the word being related primarily to beauty, *ḥusn*;¹⁴ virtue and vice are often referred to in Islamic ethical discourse as *ḥusn* and *qubḥ*, literally beauty and ugliness. Ultimately, it is the vision of the divine beauty that inspires virtue, which is beauty of soul. It is thus not surprising to find that, generally speaking, while the specialists in the domain of outward action according to Islam have been the jurists, the *fuqahā*,¹⁵ and the specialists in the domain of formal belief have been the theologians, it fell to the mystics to be the custodians of the domain of spiritual virtue, of ‘making beautiful’. Indeed, it is no coincidence that the overwhelming majority of artists in the Islamic world—calligraphers, painters, poets, musicians, etc., have been practising Sufis.¹⁶

From the Prophet’s definition of *ih̥sān* as ‘worshipping God as if one could see Him’, one sees clearly the crucial relationship between worship and virtue, spirituality and ethics, between devotion to the Creator and goodness to creatures; understanding this relationship takes us to the very heart of the spiritual tradition in Islam. Conversely, it is the denial and subversion of this tradition by some modern Muslims today that—more than any other single factor, we would venture to say—is ultimately responsible for the atrocities currently being committed by Muslims in the name of Islam.¹⁷

It should be noted here that both the theory and the practice of ethics has always been integral to Sufism.¹⁸ Even some of those who wrote treatises in more philosophical and less spiritual terms, such as al-Fārābī (d.872/950),¹⁹ were known also to be practising Sufis. The most influential figure in whom the domains of spirituality and ethics meet is, of course, al-Ghazālī (d. 505/1111) whose magisterial *ih̥yā’ ulūm al-dīn* (*Revival of the Sciences of Religion*) is a monument to the impact of the deepest spirit of Islam upon the ethical disposition of the believing soul. He has aptly been referred to as the greatest thinker on ethics in Islam,²⁰ and given the degree to which his ‘thinking’ is determined by Sufism, this alone bears testimony to the close relationship between Sufism and ethics. Indeed, it would not be an exaggeration to say that the majority of treatises written by Sufis are, in fact, treatises on ‘ethics’, if ethics be understood not just as *akh̥lāq* in the narrow sense of the term, but also as the fruit of *ih̥sān* or spiritual virtue. The various spiritual stations (*maqāmāt*) described by the Sufis often bear the names of the different virtues, such as: patience (*ṣabr*), gratitude (*shukr*), contentment (*riḍā*), generosity (*karam*), etc.²¹